

HOUSE No. 4844

The Commonwealth of Massachusetts

PRESENTED BY:

Angelo J. Puppolo, Jr.

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act providing for the appointment and removal authority of the town administrator of the town of Wilbraham for employees other than those sworn officers of the Wilbraham police department and Wilbraham fire department appointed by the select board, and department heads appointed by the select board, and department heads appointed by boards and commissions so authorized by general law or by-law.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Angelo J. Puppolo, Jr.</i>	<i>12th Hampden</i>	<i>12/4/2025</i>
<i>Jacob R. Oliveira</i>	<i>Hampden, Hampshire and Worcester</i>	<i>1/6/2026</i>

HOUSE No. 4844

By Representative Puppolo of Springfield, a petition (accompanied by bill, House, No. 4844) of Angelo J. Puppolo, Jr. (by vote of the town) relative to the appointment and removal authority for employees of the town administrator of the town of Wilbraham. Municipalities and Regional Government. [Local Approval Received.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act providing for the appointment and removal authority of the town administrator of the town of Wilbraham for employees other than those sworn officers of the Wilbraham police department and Wilbraham fire department appointed by the select board, and department heads appointed by the select board, and department heads appointed by boards and commissions so authorized by general law or by-law.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Notwithstanding any general or special law or Town bylaw to the contrary,
2 the Town Administrator of the Town of Wilbraham shall have the authority to appoint and
3 remove all employees, other than department heads, of the Town including, but not limited to,
4 employees working in the following departments: the board of assessors, the board of library
5 trustees, the council on aging, the playground & recreation commission, the town accountant, the
6 town clerk, the town treasurer, the town collector, building department, planning department,
7 information technology department, public access, regional dispatch, facilities and maintenance,
8 civilian employees in the Fire and Police Departments, provided, however, the Town
9 Administrator shall not have the authority to appoint or remove any department heads or any
10 sworn officers of the Wilbraham Police Department, or the Wilbraham Fire Department, or the

11 Director of the Department of Public Works, but shall be the appointing authority for the hire
12 and removal of employees in the Department of Public Works other than the Director with the
13 recommendation of the Director of Public Works, said recommendation which shall not be
14 binding to the Town Administrator; and provided further that Town Administrator shall not have
15 the authority to appoint and remove Department Heads Appointed by Boards and Commissions
16 So Authorized by General Law or By-Law.

17 SECTION 2. To the extent the forgoing conflicts with any general or special law or
18 Town bylaw to the contrary, including but not limited to the Special Act of 1987, Chapter 216 or
19 Special Act of 2022, Chapter 261, the forgoing shall supersede any such provision.

20 SECTION 3. This act shall take effect upon its passage.

21 B. The General Court may make clerical or editorial changes of form only to the
22 requested legislation within the scope of the public objectives of the petition, or take any other
23 action relative thereto that is reasonably necessary to carry out the public objectives of the
24 petition; or take any other action relative thereto.